

**FANTASTIC
UNIVERSE**
SCIENCE FICTION

OCT-NOV.

\$0.95



Complete Novels by **A. BERTRAM CHANDLER** and **JEAN JACQUES FERRAT**
Short Stories by **WILLIAM F. TEMPLE** • **WALLACE WEST** • **C. M. KORNBLUTH**
WILLIAM ANDERSON • **PHILIP K. DICK** • **EVELYN E. SMITH** and many others

ALL STORIES IN THIS ISSUE BRAND NEW

**FANTASTIC
UNIVERSE**
SCIENCE FICTION

OCT.-NOV.

\$0.95



Complete Novels by **A. BERTRAM CHANDLER** and **JEAN JACQUES FERRAT**
Short Stories by **WILLIAM F. TEMPLE** • **WALLACE WEST** • **C. M. KORNBLUTH**
WILLIAM MORRISON • **PHILIP K. DICK** • **EVELYN E. SMITH** and many others
ALL STORIES IN THIS ISSUE BRAND NEW

The Project Gutenberg eBook of Listen, children ... listen!

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Listen, children ... listen!

Author: Wallace West

Release date: December 25, 2023 [eBook #72506]

Language: English

Original publication: New York, NY: King-Size Publications, Inc.,
1953

Other information and formats: www.gutenberg.org/ebooks/72506

Credits: Greg Weeks, Mary Meehan and the Online Distributed
Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK LISTEN,
CHILDREN ... LISTEN! ***

listen, children ... listen!

By Wallace West

The old man was long dead—but
his widow still awaited his return.
And one night she heard....

*The elements of horror are as many
and varied as the threads in a
Gobelin tapestry—with special
stimuli for each of us. Perhaps
terror lies in the howl of a coyote, in
the noises of an old house, in a blaze
of fire. Or perhaps it responds to the
mournful creak of wheels on a
gravel road, to moonlight reflected
from a huge old mirror.*

[Transcriber's Note: This etext was produced from
Fantastic Universe October-November 1953.]

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

My grandmother was fey. At least that's what the neighbors said. She could predict the weather by the way her left heel "eetched." She always knew by some sixth sense when any of her blood was coming down from Indianapolis to visit our tumbledown farm. She insisted she heard angels singing (or sounds considerably more terrifying) during funerals at the New Harmony Church over the hill.

In the eyes of myself and my sister Annette Maw was as old as the gullies which cut up our clay fields. Probably she was about sixty when I first remember her. She still carried her lean body proudly though her back was bowed. She had a gift for mimicry and a merry smile marred by the fact that she had been salivated by taking too much calomel to fight off fever'n'aiger. This misfortune had caused her gums to recede and gave her a snaggle-toothed look. Some of her fangs moved when she ate but, to our eternal wonder, they never fell out.

She had the untiring wreck of a fine alto voice and regaled us with renditions of bloody old hymns or ballads like "The Ship's Carpenter" (*And three times 'round went our gallant ship e'er she sank to the bottom of the sea*) or an endless garbled song about a girl who masqueraded as a soldier to join her sweetheart in the wars between "Tors and Highlanzer."

I still have nightmares about those childhood years. The Brown murder was a recent memory—Patriarch Brown and his blind wife had been slaughtered by "persons unknown" in a hemlock-shrouded farmhouse half a mile from our cabin. Repercussions of the trial had hardly died away.

There was talk of another investigation and the *persons*—well known to everyone but the law—were prowling the countryside, flashing dark lanterns under doors and shouting threats of what would happen to neighbors who dared tell what they knew. Paw woke one night and fired his squirrel rifle at what he thought was a lantern but which was only a suddenly-flaming fireplace ember. The bullet knocked a newel post off my bed.

Despite the campaign of terror Paw just had to drive to the county seat once a month for supplies. Always he promised to be back by sundown. Always he met some old Butternut cronies—comrades-at-arms in the Knights of the

Golden Circle during Civil War days. And in talking about how they had outfoxed and outfought the National Guard sent to punish them for desertion from the Union Army he usually would be delayed until the night closed in.

Then, as Annette and I lay in our bed beside the fireplace, refusing to go to sleep because we knew Paw would bring us presents, Maw would open the front door, hook her bare foot around it and listen, tense with a fear which communicated itself to us.

The katydids might be quarreling. Or the baying of Mr. Morningstar's coon dogs might drift through the fall or winter air. A screechowl's sobbing might cause us to cling together in a shiver.

Finally we'd start whimpering. Then Maw would twist her wrinkled head back through the crack in the door and whisper, "Shhh! Listen, children.... Listen! I think I hear Josiah's wagon. They hain't got him this time."

Often the belated team turned down some side road. And she would murmur, hardly louder than the katydids, as she resumed her vigil, "Shhh! Listen, children.... Listen!"

When the hours of tension had set my whole body aching with what folks who don't know call "growing pains" and when the half-opened door had made the room almost as chill as the night, we would actually hear the faraway mournful creak of wheels on the gravel road, the jingle of trace chains, the rumble of a half-empty jolt-wagon bed.

"Thank you, dear just God!" Maw would breathe at last. Then she would follow her bare foot through the door and bustle about reheating the supper coffee and fixing a snack for Paw.

We would hear the wagon rumble into the yard. Next Paw would cuss Old Nell for her contrariness as he unhitched and led her to the stable. And at last a great grey-bearded man, his arms laden with bundles, would stumble through the front door to be greeted by two elves in long underwear, dancing about him and screaming, "Whatcha got for me, Paw? Whatcha got this time?"

Usually it was jawbreakers or peppermint sticks. Once, when we sold the hogs, it was a store doll for Annette and a marvelous steamboat for me that you wound up with a key and sank the first time I tried it in the branch.

He always brought something pretty and useless for Maw too. And she always scolded and loved him for buying it. Then he'd go over to the creaky chair where Aunt Ellen rocked slowly, pat her plump shoulder and hold out a shell comb, a cheap ring or a handkerchief. And Aunt Ellen would look away from the mirror—for the first time that day, perhaps—take the thing in her plump white hand, and smile.

I should have mentioned Aunt Ellen before but I forgot. In fact, everybody forgot Aunt Ellen. She wanted it so. She had been deeply in love when she was a girl, they said. But her young man had had to see the world before he settled down. So he set out for that strange half-mythical land called Europe. And he never returned.

After she was sure he would not come back Aunt Ellen stopped speaking to people. She took her seat and just looked into the mirror. I remember the rockers of that chair were worn almost through from constant use.

The mirror fascinated Annette and me. It was big—big as our front door and placed against the wall directly across from the entrance, so that if you didn't look closely you thought it was another door. And it had a great deeply-polished frame carved with intricate lacelike patterns that hurt your eyes if you looked at them too long.

I now know that it was the only thing of real value in the draughty log cabin. Maw said it was a "hear-loom," brought from Virginia by her parents, the Whites, who had been "quality" in the Old Dominion before they migrated after the war of 1812, were stampeded by land agents into "locating" in the wrong part of the state and rapidly dissipated their means on an unproductive wilderness.

Maw had made up a song about that mirror. "The Whites, 'tis said, were privateers when England ruled the waves ..." was the way it started. And it went on to tell how the mirror was part of their loot when they sacked and scuttled some tall merchantman.

To corroborate this story we had another relic, a "treasure chest" of the same dark wood, iron-bound and strong, which was used as a hens' nest beneath the house. Annette and I crawled under the floor from time to time

to see if we could find any treasure still in it. But all we ever found were eggs.

After Paw had taken off his overcoat and Maw had put his packages in the leanto kitchen he would sit before the fire, suck coffee through his beard and regale us with news from the outside—how Uncle Joe Cannon's control of Congress was about to be broken, what the Young Turks were up to, how T.R.'s trust-busting would boost farm prices and make us all rich again and how they had just found a rusted and bloody monkey wrench in Brown's well.

At last, tired and happy, with our mouths puckered from too many jawbreakers, we'd go back to bed. And we'd wake to a humdrum world which included school, collecting wood, milking our cow, riding Old Nell when she would let us and maybe going to an ice cream social at New Harmony, until it was time for Paw to make another epic trip to Martinsville.

But life was never completely humdrum when Paw was around. He knew every bird by its call, could lead us unerringly to the best raspberry patches and made marvelous popguns, slingshots and "fly killers" out of elder bushes and bits of string. When he tired of such things as the sun went down his tales about Napoleon and Hannibal crossing the Alps would hold us spellbound.

Openhanded to a fault Paw had lost most of his farm through the years by going on neighbors' worthless notes or lending them money and not having the heart to ask for its return. Yet he was the materialist of the family and never tired of poking fun at Maw's voices and premonitions.

Dressed in overalls, shaggy, massive and not always clean, he looked like a poor white. Nevertheless he had had a good education and once confessed to me, when Maw's back was turned, that in his youth he had made a tour of the state lecturing on atheism. And he had an endless fund of slightly bawdy sacrilegious stories which made May click her teeth at him and mourn that he would never go to heaven when he died.

Years slip past like water when one is young. We hardly noticed, Annette and I, that the bend in Maw's back was growing more pronounced and that Paw stopped oftener for breath when he plowed our stubby fields or sawed

the endless cords of wood which still could not keep the living room warm when wintry winds swept down from some place that he called Medicine Hat. (Annette and I used to pretend we were on a ship as we walked across the rag carpet in the living room while it billowed upward as air blew under it through cracks in the floor.)

And then one night, after the usual period of listening, when Maw finally had heard the wagon creaking, closed the door and put on the bitter coffee, Old Nell jogtrotted into the yard and stopped without the usual accompaniment of curses. For a while Maw noticed nothing wrong. Then she slowly faced the door, lips firmly drawn over those wobbly teeth.

Annette and I, all ready for our jump out of the warm bed onto the icy floor, watched her uncomprehendingly until we saw that Aunt Ellen had given over her unending vigil at the mirror and turned her head questioningly. Then we too knew that something was very strange.

As though moved by strings, placing one foot before the other with obvious effort, Maw started toward the door. After an eternity she reached it, opened it, closed it against her bare shank in the old accustomed gesture.

"*Josiah!*" we heard her scream as the foot disappeared.

With a sigh Aunt Ellen rose and waddled after her.

Maw—she was still strong as an ox and could swing an axe like a man—backed through the door after awhile, holding Paw under the armpits. Aunt Ellen carried his feet as they brought him in.

"The old fool!" Maw was whimpering. "I knew they'd get him. The old fool! I told him not to stay so danged late."

Her eyes were dry and glittering.

After the funeral—Annette and I boasted at school that the Brown murderers had done for Paw although a stroke undoubtedly was responsible—the old cabin never felt quite like home again. First a deluge of uncles, aunts and cousins descended upon us and insisted we sell the farm and move to town.

"Josiah would not have it so," Maw told them while Aunt Ellen nodded corroboration. So they compromised by having a hired hand in to do the plowing and heavier work.

At the start nothing seemed vitally wrong except the absence of Paw's explosive laughter and endless stories, plus a growing dearth of first-class popguns and slingshots. Then, one rainy day when I had been brooding over one of his dog-eared books—"Vanity Fair," I think it was—I looked up, caught sight of Maw, her potato peeling forgotten, sitting tense beside the kitchen table.

I knew what it was that had been bothering me. Maw was still listening ... always listening now. What I did not realize was that, without Paw's quizzical common sense to balance her, she was slipping imperceptibly into that never-never land which had so often beckoned.

Not long after this discovery I awakened, chilled, as the decrepit Seth Thomas clock clinked midnight. The door was open a crack and I could glimpse, by the last flickering embers, Maw's foot in its accustomed place.

"Maw," I called.

"Shhh! Listen! I think I hear a wagon."

"Maw," I screamed. "*Maw!*"

"What is it, honey?" she asked in her normal voice as she came inside, crossed the room and placed a horny hand on my forehead in one of her rare caresses.

"You'll catch cold," I mumbled, somehow ashamed.

"I was just listening to the katydids. They sound—fresh, like spring-water," she lied.

"Don't listen any more."

"All right, honey, I'll go to bed. Don't worrit yourself."

But she did not keep her promise.

Several months later I came home from school ahead of Annette, who was dusting erasers for the teacher. At the front door I stopped as I heard animated conversation inside. Thinking it was one of the neighbor women,

who called occasionally to gossip, I rushed in, eager not to miss anything, then stopped, heart in mouth, terrified.

Aunt Ellen was out of the house on one of the chores to which she now condescended to put her white hands and Maw was occupying the old rocker before the mirror. But what frightened me was the chatter in two distinct voices which still continued.

"Maw," I gulped. "Who—who you talking to?"

"Why, with Mrs.—Mrs. Jones here, of course." She laughed although her eyes refused to meet mine. "Mrs. Jones, this is my grandson I was telling you about. Take off your cap, son, and say—"

"But Maw," I gulped. "There's no one there. It's just your reflection in the looking glass."

"Why—why so it is," she stammered, brushing one brown hand across her eyes. "I was just fooling." She jumped to her feet and started bustling about like her old indefatigable self. "Now run along and fill the wood box. Then wash your hands and help me peel these 'taters. I'm way late with supper, what with having to stop to talk—I mean I must have set down to rest and went to sleep."

Then began one of the strangest battles in the history of fairie—two children against a mirror, for of course I enlisted poor Annette on my side. I tried to explain to Aunt Ellen but she merely smiled understandingly and patted me with one fat hand while her prominent eyes fluttered back to the glass.

I wrote a scrawl to Uncle Bill, my favorite, and he left his hardware store the next weekend and came down from the city with a little chinwhiskered doctor. Since psychiatry was almost unknown in those days the physician looked at Maw's tongue, thumped her chest, asked her a few questions, which she answered with sly humor, and pronounced her sound.

"I think it's you that's imagining things, boy," said Uncle Bill when he took me for a walk in the woods after one of Maw's wonderful chicken dinners.

"We're all upset by Paw's going. Just don't worry about things."

"But Uncle Bill," I protested. "I heard what I saw."

"I know—I know." His lean shrewd face had a worried look, I noticed with an upward glance. "You're a highstrung youngster. Write me often, though. And I'll come down every time I can. Say—look!" I could almost hear him sigh with relief at an opportunity to change the subject. "There's a patch of violets already. Let's pick some and take them back to Maw and Ellen. It'll make them happy."

After that, of course, I had to carry on the fight with only Annette to help.

We tried everything—went right home when we could have been playing with the other kids after school—got Maw to sing for us by the hour—read out loud to her— inveigled her into the spring woods to pick flowers and look for birds' nests. Oh, it was a brave battle put up by a twelve- and a ten-year-old against something alien and, somehow, far wiser than we.

At first Maw managed to banish her visions when she heard us come into the yard. Then we had to strive hard and harder to break the spell.

And one day we both became twins!

It happened when Annette and I came home one time the teacher took sick. It was much earlier than usual and we caught Maw rocking happily before the mirror, gossiping with her reflection.

"I'm so glad you brought your own children to visit me today, Mrs. Jones," she exclaimed the moment our images appeared in the glass behind hers. "My Tommy and Annette don't have many playmates, we live so far from any neighbors. I'm sure they'll be much happier now."

"Aw, Maw," Annette protested as we instinctively ducked out of range. "Those ain't teal children. You're just looking at us in the looking glass."

But the damage had been done. For once in my life I saw grandmother grow really angry.

"I'll have none of your sass, Annette," she stormed, rising and straightening her back until it cracked. "Mrs. Jones, I don't know what has come over my younguns. Now, will you two say you're sorry or must I whip you right before company?"

Shamefaced and shaken, we apologized to the empty air. And from that hour Mrs. Jones and her ghostly brats became our constant companions.

At first we hated and resented them, then, childlike, accepted the inevitable and even made the best of it. Sometimes, so real did Maw make the delusion become, we almost believed with her that the shadows were real. On rainy weekends we found ourselves inventing games to play with them. Perhaps, in time, we might have gone to inhabit her world of dreams.

But Maw's health was failing rapidly. We tried to ignore the fact as she did, though it soon became pitifully obvious that Paw's loss had broken the iron will which had sustained her through so many adversities. Aunt Ellen more and more ceded her place before the mirror as she helped Annette and me do the lighter chores and even some of the cooking.

Bill Pailey came over every day now—Maw never paraded her shadows when *he* was around, knowing that the bluff farmer was somehow not to be trusted with such dream stuff. And the money which aunts and uncles contributed, willingly or grudgingly, was more and more needed to fill the gaps in our finances.

"Tommy," Annette said to me one afternoon as we were plodding home from school along the muddy dogwood-bordered road. "What happens to people when they die?"

"Aw, I don't know," I muttered, kicking a loose stone with my copper-toed shoe. "Maw says the angels come and get 'em and take 'em to heaven."

"But the angels didn't come and get Dickie." Dickie was a wry-necked pin-feathered rooster that Paw had taught to come when we called, dig fishing worms for us and jump through a barrel hoop. "I went to look at Dickie's grave the other day. A dog had dug him up. There were just feathers—and bones."

"Aw," I said. "Chickens don't have souls. But Maw says that when Miz Pailey died last year she was there and she saw—"

"We're going to be awful lonesome, though," my sister sighed. "And you'll have to get up and make the fire every morning."

"What you mean?" I challenged.

"Nothing. Let's run. I'm cold." And she was off in a flutter of long legs, gingham and pale yellow braids.

After such a conversation I hardly dared enter the house that day. When I did go in, after fooling around at the barn as long as possible, I found Maw singing lustily about some man who had gone to the gallows with a white dove riding on his shoulder to prove him innocent of the murder of his sweetheart.

"Where's Mrs. Jones and her kids?" I asked, flabbergasted.

"They went home," said Maw. "I told them to. Can't spend all my time gassing with a ugly old woman like that when I've got housecleaning to do."

And until long after sunset she made the feathers fly from the old pillows, beat up the crackling corn-shuck mattresses, sprinkled and swept the floors and polished the meager kitchen utensils till they shone. Annette and I, feeling as if we had been released from jail, helped with a will. Aunt Ellen, reinstated in her rocking chair, frowned and sneezed by turns and said nothing as always.

"There," said Maw at last as she hung the home-made broom behind the kitchen range and sank into a chair, looking suddenly more worn and old than I had ever seen her. "There. It's all swept and garnished for when the bridegroom cometh."

"The bridegroom?" I glanced at her sharply.

"I was just fooling again, son." She stared down at her big-veined hands as they lay clasped in her lap. "Must be getting old, I guess. I just meant that I have a feeling your Uncle Bill will come tomorrow. And you know how fussy he is about everything being neat and clean." She rose reluctantly with a sigh, half of weariness, half of content. "Come. You and Annette get undressed and get to bed. I'll sing you to sleep like I used to when you were little."

"You look just like my daughter, sir,

Who from me ran away...."

Her old cracked voice still had its hypnotic quality and I felt my eyelids drooping despite my certain knowledge that this night, of all nights, I should stay awake.

"Maw," I mumbled. "I wanna drink."

Her bare feet padded into the kitchen. I heard the rattle of tin cup against galvanized bucket. Then she was back at my side again and the spring-water was fresh on my dry lips and gums.

"Maw," I rambled on. "I don't wanna sleep. Tell me about when you were a little girl back in Virginia—and the big white horse and the black people...."

"Not tonight, honey. You're all tuckered out," she crooned, stroking my forehead and picking up the thread of that interminable song.

"I a-am not your daughter, sir,
And neither do I know.
I a-am from Highlanzer
And they call me Jack Monroe...."

I woke with a start, those last lugubrious lines still ringing in my ears.

"She dre-ew out her broadsword.
She bid this world adieu.
Saying 'Goodbye to Jack Highlanzer'
And 'Goodbye to Jack Monroe.'"

Have you ever awakened in a strange place—a hotel room perhaps—tried to locate a familiar lamp, the dim outlines of your own bed-chamber, the tick of a friendly clock? Or have you, perhaps, sought frantically for a door with your hands sliding vainly along black and forbidding walls?

This was the same room in which I had gone to sleep. The fire was almost out. By my side Annette breathed deep and slow. I could hear Aunt Ellen snoring not far away. Through the open door a full moon stretched its carpet

almost to my bed. Yet, despite these comforting sights and sounds, everything about me seemed topsy turvy and utterly horribly wrong.

My bare toes curled with terror as I realized what it was. Our front door was in the south wall of the cabin. The moonshine was pouring in through a wide opening in the north wall—through the place where the mirror stood! And a cold wind was pouring in with it.

"Maw," I whispered, sitting up and rubbing my eyes.

Only the chorus of katydids answered.

But this was spring! Katydids sang only in the fall!

At the same moment I saw a bare foot and ankle etched in moonlight as it hooked around the age-darkened frame of the opening.

"Please, Maw." I still struggled between dream and waking. "You'll catch cold out there."

She came partially inside the "door" then and smiled at me. And I noticed, with the lack of surprise which accompanies nightmares, that her teeth were white and firm in the moonglow.

"Shhh!" she admonished. "I think I hear a wagon."

"But Paw is...." I began, then stopped spellbound.

Far in the distance, across rolling hills which lay bathed in beauty and above the fresh staccato mutter of katydids, I too caught the creak of wheels on a gravel road, the jingle of trace chains and the rumble of a half-empty jolt-wagon bed.

I crouched, hardly breathing, until I heard the wagon stop briefly at our sagging gate—we always kept it closed now—heard the rusty hinges squeak and then the friendly thump, thumpety, thump of the wagon as it resumed its progress into the yard.

"It's Uncle Bill, ain't it, Maw?" I pleaded.

"Bill's not due till tomorrow, honey," she answered softly as she shaded her eyes against the moonlight. "No, it's...."

"But it can't be," I sobbed. "He—the angels took him."

"Not Josiah! Angels wouldn't touch him with a ten-foot pole, thank the dear just God," she chuckled. "He'll have a whole raft of packages after all this while." She started forward briskly. "I'll go help pack them in."

"No, Maw! Don't leave—wait for me!" I screamed, plunging from bed and racing wildly after her receding back.

I regained consciousness to find Aunt Ellen bathing my forehead with hot vinegar. Annette was sobbing. My face was badly cut—I still wear the scar—and the mirror was shattered in its frame.

"Maw!" I struggled to get up. "She...."

"I know," said Aunt Ellen in just the thread of a voice unused for years as her plump white hands continued to apply the compress. "I understand."

When Uncle Bill arrived next morning there was a great to-do and the neighbors organized a search of the surrounding woods and the creek bottom. Of course they found nothing. I knew they wouldn't. Annette and Aunt Ellen knew they wouldn't. And I think Uncle Bill knew it too after he heard my story, although of course he wouldn't let on.

The rest of them patted my head and said, "Too bad, poor boy. He's under an awful strain," when I tried to tell them.

Several months later a woman's body was found in White River, full fifteen miles away. People said it must be grandmother, that she must have wandered that far before she died of exposure. Our aunts, uncles, cousins and nephews had a big funeral at the New Harmony Church over the hill.

But Annette and I wouldn't go.

*** END OF THE PROJECT GUTENBERG EBOOK LISTEN,
CHILDREN ... LISTEN! ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.